

for Terminating Sanctions to August 2, 2024 to give Defendant more time to provide responses. On August 2, 2024, the Court denied the motion without prejudice and gave Plaintiff thirty days from the Notice of Ruling to submit his responses. Notice of Ruling was filed on August 12, 2024. On September 6, 2024, the Court granted Plaintiff's Motion to Deem Requests for Admission Admitted. The Requests for Admission has been served on Defendant on June 10, 2024. Plaintiff filed the Motion for Terminating Sanctions on October 4, 2024. Defendant was served by mail on October 3, 2024. It is now November 1, 2024. Based on what is before the Court, it appears that Defendant still has not responded to discovery.

Defendant's failure to respond to discovery despite there being a Court Order requiring Defendant to do so constitutes a misuse of the discovery process. CCP § 2023.010(d) and (g). With that finding, the Court turns to whether terminating sanctions are appropriate in this case. This is not a matter where Defendant filed an Answer then abandoned the case entirely. Defendant has personally appeared at all hearings in this matter that required an appearance. Despite participating in the case, Defendant has blatantly refused to respond to discovery. Defendant was served with Special Interrogatories and Request for Production fifteen months ago and Requests for Admission nearly five months ago. The Court has now granted three motions related to discovery. Monetary sanctions have been imposed, which have not been paid. The Court continued the previous Motion for Terminating Sanctions for Defendant to respond then denied the motion without prejudice, again giving Defendant more time to respond. Requests for Admission have been deemed admitted. Evidentiary and issue sanctions are generally an intermediary step prior to imposing terminating sanctions, however, it does not appear that imposing such sanctions would remedy the harm caused by Defendant's refusal to comply with any of his discovery obligations. Imposing evidentiary or issues sanctions would likely not result in Defendant's compliance with his discovery obligations. Despite Defendant's belated request that he be re-served with the interrogatories, Defendant has made it clear through his actions in this case that Defendant will not respond to discovery regardless of the sanctions imposed by this Court. Terminating sanctions are warranted for Defendant's continued misuse of the discovery process.

Monetary Sanctions. Plaintiff also seeks monetary sanctions in the amount of \$1,537.75. This request is based on three hours of attorney time at \$500 per hour plus a \$60 court filing fee and \$13.75 for e-filing. The Shasta County Superior Court does not have e-filing. The Court found \$300 to be reasonable hourly rate in previous motions on this matter. Sanctions are imposed against Defendant in the amount of \$960.

The Motion for Terminating Sanctions is **GRANTED**. The Answer filed by Defendant on June 16, 2023 is ordered **STRICKEN**. Plaintiff may request entry of default. Monetary sanctions are imposed in the amount of \$960. Plaintiff submitted a proposed order that will be modified to reflect the Court's ruling. The matter will be on calendar on **Friday, January 3, 2025 at 1:30 p.m. in Department 63** for review regarding status of default and default judgment. Should judgment be entered prior January 3, 2025, the review hearing will be vacated.

JOHNSON, ET AL VS. PARENT, ET AL.

Case Number: CVCV21-0197618

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on October 14, 2024, to Defendants and Counsel. No responses to the OSC have been filed. However, the Court notes that the terms of the OSC are unclear due to a clerical error. Therefore, today's hearing will be continued, and a new Order to Show Cause will issue. The Court intends to issue an Order to Show Cause why terminating sanctions should not be imposed and the Answer stricken, for violation of the May 24, 2022 Order compelling this matter to arbitration pursuant to the stipulation of the parties, and for failure to appear at the September 6, 2024 hearing. The clerk is directed to prepare a new Order to Show Cause Re: Terminating Sanctions and Striking of the Answer. The matter is continued to **Friday, January 3, 2025, at 1:30 p.m. in Department 63** for further proceedings on the Order to Show Cause.